

## 25STCP00234 25STCP00234

County: los-angeles

Division: Civil Law and Motion

Department: 833

Hearing date: 2026-08-21

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Case Number: 25STCP00234 Hearing Date: August 21, 2026 Dept: 833

Fox News Network, LLC Case No. 25STCP00234

v.

Hearing:

August 21, 2026

Location:

Stanley Mosk Courthouse

Department:

833

County of Los Angeles, et. al. Judge:

Joseph Lipner

[Tentative] Order on

Motion to Augment Record and Request to Amend the Transcript

Petitioner Fox News Network, LLC ("Fox News") moves for an order to augment the record to include evidence Respondent County of Los Angeles ("LA County") produced after Fox News filed its Trial Brief and to correct the transcript of the May 8, 2026, hearing on Fox News's Motion to Compel Discovery.

The Court GRANTS the request to correct the transcript of the May 8, 2026 hearing. Fox News is to prepare an official order with the change that the Court has described below. The Court will sign that order, and it shall then be sent to the court reporter for the reporter to correct the transcript.

The Court GRANTS the Motion to  
Augment the Record IN PART and DENIES the Motion to Augment the Record IN PART.

The record is to be augmented as  
follows:

.

Fox News may add Exhibit F, G, H, I,  
J, and K to the record, as these exhibits are directly responsive to the Taiwan  
CPRA request.

.

Fox News may add Exhibits R, S, and  
T to the record as those records deal with methods of electronic communication that  
are directly responsive to the original CPRA request.

.

Fox News may add Exhibit U to the  
record, as this exhibit addresses an alleged gap in individual communication  
between Logan and officials at Smartmatic.

The record will not be augmented to  
address personal gifts or benefits or the in-person meetings between Logan and  
Smartmatic (part of Section A and all of Section B of the Discussion section of  
this order.)

The Court directs the parties to  
meet-and-confer to discuss whether additional records beyond what Fox News  
presented in the Fox Declaration are eligible for inclusion in the record based  
on the analysis presented in the discussion section of this order. The Court  
encourages the parties to stipulate as to what new records should be included.  
The Court sets an OSC re: Status of Augmented Record for September 16th  
at 09:30AM. If the parties cannot agree as to which new records should be  
included, Fox News shall lodge the disputed records with the Court on a thumb  
drive no later than September 8, 2026.  
Each party may submit a 5-page brief by September 9, 2026 discussing why  
they think the disputed records should be included or excluded from the record  
for this petition. At the September 16th hearing, if the parties  
have not already agreed what records will be included in the augmented record, the

Court will make that determination.

The Court will also discuss with the parties at the hearing on August 21 whether the motion to augment will impact the timing of the trial.

## BACKGROUND

The operative petition in this matter is the Second Amended Verified Petition filed February 24, 2026 (the "Petition"). According to the Petition, Fox News filed this action to obtain public records related to the relationship between certain L.A. County officials and the election systems company Smartmatic, and the process by which Smartmatic was awarded the contract to build voting equipment for and run Los Angeles's federal, state, and local elections.

The Petition alleges that Smartmatic, its executives, and parts of the L.A. County government have been the subject of allegations of corruption in government contracts. The petition contends that (a) Smartmatic officials provided items of value that were knowingly in excess of the statutory maximums to Dean Logan, who helped Smartmatic obtain the lucrative contract that Logan now oversees; (b) Logan failed to disclose those benefits as required; and (c) based on allegations by federal prosecutors, Smartmatic and its executives have funneled taxpayer dollars from Smartmatic's L.A. County 2020 election contract to a "slush fund" held by a "shell company" that they used in the same pattern of misconduct that is the subject of federal indictments for bribery in obtaining and maintaining Smartmatic's contracts in the Philippines.

According to the Petition, the County has not produced all the records that exist related to these issues. Fox News asserts that Smartmatic leaders have instructed employees and third parties to delete incriminating documents and important communications.

To learn more about the relationship between Smartmatic and LA County, Fox News submitted a series of records requests between October 2024 and February 2025. Between January and May 2025, LA County produced approximately 920 pages in response to the existing CPRA requests. (Fox Decl., ¶ 4.) The CPRA requests between October 2024 and February 2025 are the basis for this writ

petition.

Petitioner then submitted additional CPRA requests in October 2025 (which are not related to this current CPRA action.) Since Fox News filed its Trial Brief on March 23, 2026, LA County has made three additional productions in response to Petitioner's October 2025 CPRA requests. (Fox Decl., ¶ 5.) Petitioner contends that while this new production primarily pertains to documents related to the October 2025 CPRA requests, there are also documents relevant to the October 2024 to February 2025 CPRA requests. (Motion, 5:17-22.) The documents relevant to the October 2024 to February 2025 CPRA requests include documents related to (1) Dean Logan's Smartmatic-sponsored 2019 Taiwan trip; (2) meals, dinners, and other benefits Logan received from Smartmatic; (3) communications on undisclosed platforms and in Mr. Logan's personal accounts; and (4) evidence of unproduced text messages.

#### LEGAL STANDARD

The California Public Records Act, Government Code § 7923.105 allows the Court to decide CPRA cases after considering oral argument and additional evidence as the Court may allow.

Agencies are obliged to disclose records they can locate "with reasonable effort." (City of San Jose v. Superior Court (2017) 2 Cal.5th 608, 627.) "Reasonable efforts do not require that agencies undertake extraordinarily extensive or intrusive searches, however." (Ibid.) Agencies are "entitled to a presumption that they have reasonably and in good faith complied with the obligation to disclose responsive information." (American Civil Liberties Union of Northern California v. Superior Court (2011) 202 Cal.App.4th 55, 85.)

#### EVIDENCE SUBMITTED

##### ON REPLY

The Court declines to consider the declaration of Jason Hale, which was submitted by Fox News on reply. "The general rule of motion practice...is that new evidence is not permitted with reply papers." (Jay v. Mahaffey (2013) 218 Cal.App.4th 1522, 1537.) The declaration of Hale appears to dispute some of the findings of

the forensic examiner, who LA County hired to review records in this action.  
Fox News could have introduced this evidence with the moving papers.

The Court does consider  
portions of the supplemental declaration of Fox News's counsel. Some parts of  
that declaration respond directly to LA County's arguments in the opposition  
and could not have been raised at an earlier time.

#### MOTION TO AMEND THE TRANSCRIPT

California courts have recognized that a trial court is  
not bound by a reporter's transcription where the language "does not make  
sense" or "would produce an anomalous result." (People v. Huggins (2006)  
38 Cal.4th 175, 191.) "Although the  
parties may call the judge's attention to what they deem inaccuracies in the  
transcript, it is for the judge to examine the transcript and to determine  
whether it fully and accurately reflects the proceedings reported. If the  
determines that it does he will certify the transcript. If he finds the  
transcript incorrect or incomplete, he will require the reporter to correct or  
amend it." (Williams v. Davis (1946) 27 Cal.2d 746, 753.)

Fox News requests to change the transcript of the May 8th  
hearing. The current transcript indicates that it was Fox News's fault that the  
Court had to continue the trial date. Petitioner has been diligently  
prosecuting its case and pursuing records in this litigation; the Court did not  
(and does not) place any blame on Petitioner for the delay. LA County does not  
oppose an amendment.

The Court agrees with Fox News that the transcript must  
amended, as Fox News was not responsible for the delay in the trial. The line documented  
on Page 15 of Fox News's brief must be changed to "it is not your fault."

#### MOTION TO AUGMENT THE RECORD DISCUSSION

Fox News contends that the new documents would have  
materially affected Petitioner's trial brief because they could have further  
argued that LA County's response to the original October 2024-December 2024  
CPRA requests was deficient. (Motion, 9:24-28.)

A.

Gifts,

Meals, and Other Benefits

Fox

News criticizes LA County's argument that it ran its "standard protocol" search of its own Microsoft Suite and argues that the new productions are full of responsive records that LA County would have found using its standard protocol, if done in a reasonably diligent manner. (Motion, 10:4-9.)

Fox

News argues that there are new documents in the very same places LA County claims to have searched in responding to the original CPRA requests. (Motion, 10:8-10; Fox Decl., ¶ 10.) Those new documents include (1) a May 6, 2019 email from Murphy to Mr. Logan asking for his "ideal dates for going to Taiwan," (2) a January 7–8, 2019 exchange in which Murphy invited Mr. Logan "for a beer tomorrow after work" to discuss Smartmatic costs and change requests; (3) a January 11, 2019 email in which Logan thanks Smartmatic USA's President for lunch; and (4) a January 31, 2019 calendar entry reflecting a lunch with Logan, Murphy, and the Logan's chief deputy. (Fox Decl., ¶¶ 11, 18, 19; Exh. E, F, M, N, and O.)

Fox

News argues that these documents are directly responsive to two of the original CPRA requests, which ask for:

Any records, including communications, that reflect gifts, meals, or other personal benefits received by Dean Logan from the election systems company Smartmatic, any of its corporate affiliates, or any current or former executive, official, employee, contractor, agent, or representative of Smartmatic (hereinafter, "Smartmatic") between January 1, 2015 and the present.

Any records, including communications, related to the July 2019 trip that Dean Logan took to Taiwan with Smartmatic personnel between January 1, 2015 and the present.

(Fox News' Trial Brief, Fox Decl. ¶ 6, Exh. 5.)

The

Court addresses the meals and gifts issue first. Exhibits N and O do not reflect that Logan received a gift, meal, or personal benefit. Exhibit N notes that Logan had lunch with a Smartmatic official named Kevin Shelly. (Fox Decl., ¶ 19; Exh. N.) Exhibit O has no text but seems to indicate that Logan had lunch with a Smartmatic official. (Fox Decl., ¶ 20; Exh. O.) Exhibit M involves a Smartmatic official asking Logan to have a beer after work. (Fox Decl., ¶ 18; Exh. M.) Exhibit M is a proposal for a drink. It is unclear if this beer date ever occurred. For similar reasons, Exhibits P and Q do not appear to reflect receipt of a meal.

Fox News is not permitted to add any of these exhibits to the record for this case. These exhibits are not responsive to the original CPRA request. Because these exhibits are not responsive, the new records do not bear on the adequacy, reasonableness, or diligence of LA County's search for records.

Next,

the Court addresses the Taiwan issue. LA County argues that the new record is not relevant because the Taiwan CPRA request was narrowed during several meet-and-confers between the parties. (Levin Decl., ¶ 3.) LA County states that it was required to produce only Dean Logan's notice to the Board of Supervisors regarding the Taiwan trip and the Board of Supervisors' approval in response. (Levin Decl., ¶ 3.)

However, at the time of the meet-and-confer, LA County stated only that Fox News had agreed that LA County could limit its search of custodian mailboxes to Dean Logan and members of the Los Angeles County Board of Supervisors in the 2019 calendar year. (Fox Supp. Decl., ¶ 4, Exh. A, p. 3.) There is no evidence from the time of the meet-and-confer that Fox News was okay with narrowing the Taiwan CPRA request to only the notice and approval. Indeed, LA County promised that it would "contin[ue] to search for records that may be responsive" and "supplement its response." (Fox Supp. Decl., ¶ 4, Exh. A, p. 4.) This suggests that LA County anticipated additional records would be produced.

The

new exhibit asks for Logan's ideal dates to travel to Taiwan and potential agenda items for Logan's trip. (Fox Decl., ¶ 11; Exh. F.) This new exhibit is undoubtedly responsive to the original CPRA request and can be included in the

record for this case. Other records are similarly responsive (Fox Decl. Exhs. G-K.) The records do not introduce a new theory or new category of evidence and simply supplement the record and fill gaps created by LA County's responses to the original CPRA request.

It is possible that LA County's search for Logan's trip-related records might have been reasonable. That is a question that the Court may determine at trial. However, the fact that additional responsive records have since appeared does bear on the adequacy, reasonableness, and/or diligence of LA County's original search for records.

B.

Meetings

between Dean Logan and Smartmatic

The

original CPRA request asked for (1) calendar entries that include meetings or calls with employees or representatives from Smartmatic and Logan; and (2) any communications or records of communications from native mobile messaging applications, WhatsApp, or any other messaging platform, between Dean Logan and Smartmatic between January 1, 2015 and the present. (Fox News' Trial Brief, Fox Decl. ¶ 6, Exh. 5.)

Fox

News argues that there are new records related to meetings between Dean Logan and Smartmatic that deserve to be added to the record for this case. (Fox Decl., ¶¶ 17, 23, Exh. L and R.)

However,

the first (Exh. L) is an email produced in response to Petitioner's new CPRA Request for all emails with Smartmatic. The second (Exh. R) is an email invite dated August 13, 2025, which falls outside any time period captured by the original CPRA Requests, the last of which was issued in February 2025.

Neither

Exhibit L nor R is responsive to the original CPRA request.

Additionally, LA County has described how their original response was reasonable: LA County said that it searched for



calendar entries reflecting Mr. Logan's meetings that included someone using the Smartmatic domain (@smartmatic.com) as an invitee, and that it produced the records after de-duping Mr. Logan's calendar from LA County's other production. (Levin Decl. iso Respondent's Trial Brief, ¶ 24; Chu Decl iso Respondent's Trial Brief, ¶ 2.)

Fox

News has not met its burden to explain why Exhibits L or R should be included in the record.

C.

Alleged

Gap in Records

Fox

News argues that LA County has tried to explain away an unexplained gap in Dean Logan's texts with a Smartmatic official named Dan Murphy between June 2021 and June 2022. However, Fox News has introduced evidence that a newer CPRA request turned up a Murphy text message to Logan in January 2022. (Fox Decl. ¶ 26, Exh. U.)

This

record would seem to be responsive to the following CPRA request:

any communications or records of communications from native mobile messaging applications, WhatsApp, or any other messaging platform, between Dean Logan and Smartmatic between January 1, 2015 and the present.

(Fox News' Trial Brief, Fox Decl. ¶ 6, Exh. 5.)

LA

County argues that there was no gap at all, and there were 92 text messages between Dean Logan and Smartmatic officials, including messages involving Dan Murphy during the June 2021 to June 2022 period. (Levin Decl., ¶ 7.)

Fox

News explains that these 92 text messages include examples of group texts with Logan and Smartmatic personnel, but there is an actual gap of direct messages

between Logan and specific Smartmatic personnel. (Reply, 8:17-9:8.) Fox News argues that the direct messages are more relevant because Logan is more likely to have discussed undisclosed gifts, favors, or illicit schemes in group messages (Fox Supp. Decl. ¶ 3; Reply 8:17-9:8.) This assertion at this point is speculation. There is no actual evidence that Logan and Smartmatic officials were engaged in illicit schemes in private text messages.

The

Court finds, however, that it is necessary to include Exhibit U in the record for this case. Exhibit U is directly responsive to the original CPRA request. This record does not introduce a new theory or new category of evidence and simply supplements the record and fill gaps created by LA County's responses to the original CPRA request.

It

is possible that LA County's search for Logan's text messages during the alleged "gap" was reasonable. That is a question that the Court may determine at trial, not on this motion. However, the fact that additional responsive records have since appeared does bear on the adequacy, reasonableness, and/or diligence of LA County's original search for records.

Therefore,

Exhibit U can be included into the record.

D.

Platforms

Dean Logan used to interact with Smartmatic

Fox

News argues that the new records indicates that Logan used Teams and Skype to connect with Smartmatic personnel. (Motion, 13:4-11; Fox Decl., Exhs. R-T.) According to Fox News, Logan previously stated as a response to a special interrogatory that he had only communicated with Smartmatic personnel via email, text messages, and at various times, calls on WhatsApp. (Motion, 13:4-7.)

The

special interrogatory in requested the following:

Identify each method of electronic communication that

You used to communicate with any Smartmatic employee, agent, or representative between January 1, 2017 and February 26, 2025, organized as follows: (a) email addresses, including any personal email addresses; (b) phone numbers, including any personal phone numbers; and (c) messaging platforms, whether on personal or County-issued devices.

(Levin Decl., ¶ 14, Exh. 6.)

The  
special interrogatory defined messaging platform to include:

any application, software, or service used to send and receive electronic text messages, including but not limited to WhatsApp, Slack, Signal, Telegram, Viber, Microsoft Teams, Skype, Discord, WeChat, Line, iMessage, Snapchat, or Facebook Messenger.

(Levin Decl., ¶ 14, Exh. 6.)

LA

County contends that the new records are calendar meeting invites, not text messages on Teams or Skype, so they are not responsive to the special interrogatory. (Fox Decl., Exs. R-T.) LA County is not correct. The special interrogatory did not ask only for text messages. The special interrogatory asked for each method of electronic communication that Logan used to communicate with Smartmatic personnel. Electronic communication includes receiving and accepting (or declining) calendar meeting invites, even if no text-based messages are sent.

Courts

properly consider evidence that is “supplemental to evidence submitted in the moving papers [and] not brand new” and is offered to “fill gaps in the evidence” already before the court. (RGC Gaslamp, LLC v. Ehmcke` Sheet Metal Co. (2020) 56 Cal.App.5th 413, 431 [applying principle in anti-SLAPP context]; Riskin v. Downtown Los Angeles Prop. Owners Association (2022) 76 Cal.App.5th 438, 449 [in CPRA action, trial court properly considered post-judgment supplemental declaration where “[t]he declaration elaborate[d] on the usefulness of documents disclosed through the CPRA”].)

The

Court finds that these calendar invites are examples of evidence that fills the gap in the current record. Therefore, Fox News can augment the official record with all examples of calendar meeting invites on Teams or Skype.

E.

Prevailing

Party

The Court denies any request to determine that any party is the “prevailing party” at this time. That determination is only to come after trial.

## CONCLUSION

The Court GRANTS the request to correct the transcript of the May 8, 2026 hearing. Fox News is to prepare an official order with the change that the Court has described below. The Court will sign that order, and it shall then be sent to the court reporter for the reporter to correct the transcript.

The Court GRANTS the Motion to Augment the Record IN PART and DENIES the Motion to Augment the Record IN PART.

The record is to be augmented as follows:

.

Fox News may add Exhibits F, G, H, I, J, and K, to the record, as these exhibits are directly responsive to the Taiwan CPRA request.

.

Fox News may add Exhibits R, S, and T to the record as those records deal with methods of electronic communication that are directly responsive to the original CPRA request.

.

Fox News may add Exhibit U to the record, as this exhibit addresses an alleged gap in individual communication

between Logan and officials at Smartmatic.

The record will not be augmented to address personal gifts or benefits or the in-person meetings between Logan and Smartmatic (part of Section A and all of Section B of the Discussion section of this order.)

The Court directs the parties to meet-and-confer to discuss whether additional records beyond what Fox News presented in the Fox Declaration are eligible for inclusion in the record based on the analysis presented in the discussion section of this order. The Court encourages the parties to stipulate as to what new records should be included. The Court sets an OSC re: Status of Augmented Record for September 16th at 09:30AM. If the parties cannot agree as to which new records should be included, Fox News shall lodge the disputed records with the Court on a thumb drive no later than September 8, 2026.

Each party may submit a 5-page brief by September 9, 2026 discussing why they think the disputed records should be included or excluded from the record for this petition.

IT IS SO ORDERED.

Dated: August 21,  
2026

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Joseph  
Lipner

Superior  
Court Judge